

STATE OF NEW YORK

2629--A

2025-2026 Regular Sessions

IN ASSEMBLY

January 21, 2025

Introduced by M. of A. ROSENTHAL -- read once and referred to the Committee on Codes -- recommitted to the Committee on Codes in accordance with Assembly Rule 3, sec. 2 -- committee discharged, bill amended, ordered reprinted as amended and recommitted to said committee

AN ACT to amend the criminal procedure law, in relation to reporting certain convictions and sentences to the office of professional medical conduct within twenty-four hours; and to amend the public health law, in relation to requiring the department to disseminate a criminal conviction and criminal sentence of a physician within forty-eight hours of receipt

The People of the State of New York, represented in Senate and Assembly, do enact as follows:

1 Section 1. Section 380.85 of the criminal procedure law, as added by
2 chapter 477 of the laws of 2008, is amended to read as follows:

3 § 380.85 Reporting sentences to office of professional medical conduct;
4 licensed physician, physician assistant, or specialist
5 assistant.

6 Whenever a person who is a licensed physician, physician assistant, or
7 specialist assistant or a physician who is practicing under a limited
8 permit or as a medical resident is sentenced for a crime, the court that
9 has sentenced such person shall deliver a copy of the certificate of
10 conviction and provide notification of the conviction and sentence to
11 the office of professional medical conduct within twenty-four hours.

12 § 2. Subdivision 9 of section 2995-a of the public health law, as
13 amended by section 3 of part A of chapter 57 of the laws of 2015, is
14 amended to read as follows:

15 9. (a) The department shall, in addition to hard copy physician
16 profiles, provide for electronic access to and copying of physician
17 profiles developed pursuant to this section through the system commonly
18 known as the Internet. The department shall update a physician's online

EXPLANATION--Matter in italics (underscored) is new; matter in brackets
[-] is old law to be omitted.

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1 profile within thirty days of receipt of a completed physician profile
2 survey or any change in profile information.

3 (b) Notwithstanding any inconsistent provision of law to the contrary,
4 the department shall update a physician's online profile within forty-
5 eight hours of receipt of a copy of a certificate of conviction pursuant
6 to section 380.85 of the criminal procedure law.

7 § 3. This act shall take effect immediately.